

Plaintiff's counsel provided a reasonable explanation at a reasonable period of time prior to the 3/27/26 deposition. Ms. Washington stated in her declaration that her firm has taken steps to ensure more timely communication going forward and asserts that sanctions are not warranted as Plaintiff acted in good faith, has demonstrated his willingness to be deposed, and has now provided alternative available dates for the deposition to proceed. (Dec. Washington ¶¶ 10-11.)

Notably, the statute provides a built-in mechanism should Plaintiff "repeatedly" fail to attend his deposition – "a court shall order the case dismissed without prejudice and the plaintiff's attorney to be responsible for costs awarded to the manufacturer." (CCP § 871.26(j)(3.)) Based on Plaintiff's showing of good cause, the motion for sanctions is denied.

9.

CASE #	CASE NAME	HEARING NAME
CVRI2601060	FLANAGAN VS AMAZON.COM SERVICES LLC	DEMURRER ON COMPLAINT

Tentative Ruling: Off-Calendar 6/30/26